

	Name of Work	Tender No.
	“Development and Implementation of Rigorous Optimiser for Heater Downstream Section using Hybrid Models (First Principle + Artificial Intelligence (AI) / Machine Learning (ML)) in Naphtha Cracker Unit of Panipat Naphtha Cracker”	RPNC261001

NOTICE INVITING TENDER (E-TENDER)

1.	Tender No.	RPNC261001
2.	Type of Bid	DOMESTIC BIDDING, WORKS CONTRACT Under Two Bid System
3.	Name of the Job	“Development and Implementation of Rigorous Optimiser for Heater Downstream Section using Hybrid Models (First Principle + Artificial Intelligence (AI) / Machine Learning (ML)) in Naphtha Cracker Unit of Panipat Naphtha Cracker”
4.	Time Schedule/ Duration of Contract	Total Duration for the project shall be 14 (Fourteen) Months, which shall be reckoned from the zero date. Kick off Meeting is to be conducted within 03 weeks of LOA/PO/WO(Zero date of Project).
5.	Tender Download Schedule	21 days from the date of publishing of tender upto 3:00 PM Tender documents can be downloaded free of charge from the website www.iocletenders.nic.in during the above period.
6.	Pre-Bid Meeting	Applicable Date of Pre-Bid Meeting: 19.01.2026 at 2:30 PM (online) Interested bidders are requested to submit their request for participation in the Pre Bid Meeting along with their queries in advance to email ids indicated below: 1. Mr. Satyander Singh Saini, DGM(TS) Tel 0180-252-2505, e-mail- sainisatyander@indianoil.in 2. Mr. Rabindranath Patel, CTSM Tel 0180-252- 6525, e-mail- patel_r@indianoil.in 3. Mr. Dinesh Singh, DGM (Contracts) Tel. : 0180-252-6615 e-mail: dineshs@indianoil.in 4. Ms. Apeksha Singh, SM(Contracts) Tel. 0180-252-6616 e-mail: singhapeksha@indianoil.in Link of the online prebid meeting will be shared to the interested bidders through e-mail.
7.	Bid Submission Start Date & Time	As per details mentioned at E-tender portal.
8.	Last date of submission of tender	As per details mentioned at E-tender portal.
9.	Techno-commercial tender opening date	As per details mentioned at E-tender portal and or at a later date/time convenient thereafter. Date and time of Priced Bid opening will be communicated only to techno-commercially acceptable bidders.
10.	Earnest Money Deposit (EMD)	Rs 247000.00/- (i)EMD amount up to Rs. 1 Lakh: EMD to be submitted through online payment at IOCL e-tender portal along with the offer. (ii)EMD amount more than Rs. 1 Lakh: EMD can be submitted through online payment at IOCL e-tender portal along with the offer or through Bank Guarantee (BG)/Insurance Surety Bond(ISB). Validity of BG/ISB in lieu of EMD shall be at least 3 months beyond bid validity. Format of BG/ISB against EMD should exactly be as given in SITT/SITB/GCC. Offers received without EMD/valid EMD exemption document (as per tender) is liable for OUTRIGHT REJECTION .
11.	Pre-qualification Criteria (PQC):	The intending tenderers shall have to furnish proof of their pre-qualification and experience along with the Part-I (Techno-commercial bid).

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		Note: Since, it is Critical Works Contract, therefore, No Relaxation on PQC ground is allowed to Startup-India registered bidders and MSE bidders
11.1	Annual Turnover (ATO)	Minimum Rs. 393.06 Lacs during any of the three preceding financial years from the date of original bid closing date. In case, original bid closing date is upto 06 (six) months from current financial year, and, in case audited financial results of the immediate three preceding financial years are not available, the bidder has an option to submit the audited financial results of the three years immediately prior to preceding financial year. Wherever the closing date of the bid is after 06 months from the current financial year, bidder has to submit the audited financial results for the immediate three preceding financial years. The audited financial results shall be certified by an auditor on or before the date of bid submission. Proof of ATO shall be submitted in form of Audited Balance Sheet & Profit and Loss Account.
11.2	Work completed by the bidder, as main contractor, or as sub-contractor, during last 07 (Seven) years ending last day of month previous to the original date of bid submission end date. The value of completed work for evaluation shall be considered as:	The bidder shall satisfy the following Commercial Pre-qualification criteria and also submit the supporting documents against Commercial PQC clause as mentioned below: The order(s) executed by the bidder, during the last Seven (7) years ending on the last day of the month immediately preceding the month in which the last date of bid submission (original date without considering any extension) falls, should be considered as below: Three “similar work” successfully completed works orders, each costing not less than Rs 114.65 Lacs OR Two “similar work” successfully completed works orders, each costing not less than Rs 152.86 Lacs OR One “similar work” successfully completed works orders, each costing not less than Rs 191.07 Lacs (The estimated cost does not include AMC charges) Wherein Order means, Either a Single Order from a company or Repetitive orders from the same company in one calendar year collectively will also be considered as one order. Note: 1. The above value of completed works is inclusive of service tax/GST. In case of extended bid submission date, original bid submission date shall be considered.
11.3	Similar nature shall be defined as	Implementation of Hybrid Model (First Principle cum AI/ML) based online Optimizer model for process optimization in a Naphtha or Gas Cracker Unit which is connected to Process historian/DCS/APC, including supply & installation of all



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		software and hardware and successful commissioning of the optimiser model.
11.4	Whether the Tendered Job is an ARC / AMC [If ARC / AMC job then the work experience value submitted by the bidder shall be annualised]	No
12.	Additional Technical Requirement (PQC)	Technical Requirement shall be as follows: 1. The bidder shall have experience of having successfully carried out and completed similar work in Naphtha/Gas Cracker Unit during the last Seven (7) years ending last day of the month previous to the one in which the last date of bid submission (original date without considering any extension) falls, and the performance of the optimizer model should be satisfactory. Definition of “Similar Work” is “Implementation of Hybrid Model (First Principle cum AI/ML) based online Optimizer model for process optimization in a Naphtha or Gas Cracker Unit which is connected to Process historian/DCS/APC, including supply & installation of all software and hardware and successful commissioning of the optimiser model. Supporting document - The Bidder shall submit Purchase Order (PO)/Work Order (WO) or agreement copy and job completion certificates from the client(s) as documentary evidence along with satisfactory performance certificate /communication from the client(s). For similar work, in case the PO/WO submitted by bidder does not mention First Principle cum AI/ML based model for optimization, then the bidder needs to provide work completion certificate from the client(s) mentioning the same. 2. Bidder to directly approach Technology Licensor (M/s Lummus Technology) of the Naphtha Cracker Unit (NCU) for getting the Non-Disclosure Agreement (NDA) for implementing Closed loop Optimizer (First Principle cum AI/ML model) for the defined process section of NCU and submit to IOCL.
13.	Mode of submission	Offer must be uploaded on e-tender website https://iocletenders.nic.in before the last date & time of submission of tender. Offer submitted using any other mode will not be accepted.
14.	Other requirements	1. PF Code Allotment letter/PF registration. 2. Independent ESI Code or undertaking for Independent ESI code in the Format given as Annexure to ITB. 3. Proof of Authority in favour of person authorized to submit the bid. 4. Copy of PAN card. 5. Certificate of Incorporation / Partnership deed/ Proprietorship affidavit/ Societies Registration Certificate. 6. Duly filled, signed & stamped copy of Annexures of Exhibit Format part-2
15.	Tender Inviting Authority	Mr. Dinesh Singh DGM(Contracts)

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		Indian Oil Corporation Limited, Panipat Naphtha Cracker-132103 <i>Email id:</i> dineshs@indianoil.in <i>Phone:</i> 0180-252-6611 <i>Alternate details</i> Email id: singhapeksha@indianoil.in Phone: 0180-252-6616
16.	Integrity Pact Agreement	Not Applicable
17.	Reverse Auction	Applicable
18.	Preference to Public Procurement (Preference to Make in India), 2017 and amendments thereof (PPP-MII)	Applicable, Ref Tender documents for details.
19.	Purchase Preference to Micro and Small Enterprises (MSEs) Bidders (PPP-2012)	Not Applicable, it is works contract.
20.	Other general Points	
20.1	Mobilization Advance (applicable)	NO
20.2	Split-ability of Job	Not Applicable
20.3	Weighted Percentage for Labour component over estimate & applicable GST Rate/SAC Code as per IOCL	Weighted % for Labour component: NA GST Rate: 18% SAC: 998719 SAC Category: Maintenance and repair services of other machinery and equipments. Note: Bidder to give confirmation/deviation to this in the 'FORMAT FOR GST' given in 'Exhibit format Part-2' of tender document in-conjunction with guideline given there.
20.4	Deviation to GCC/SCC	No deviation to GCC/SCC is permitted in this tendered job.

Beware of Fake Communications - IOCL officials never asks for any financial transaction other than as mentioned in NIT or Tender doc. Any communication like Call SMS Email etc. can be made by fraudster. Please do not act on such communication.

21. General

EVALUATION BASED ON INCLUSIVE VALUE OF TAXES/GST COMPONENT:

Bidders to note that evaluation of their offer towards fulfilment of NIT PQC shall be done on values including GST. Therefore, bidders to submit WO/completion certificates/ATO documents including/indicating the value of GST.

Bidder to note:

- i. **Provisions/Conditions stipulated in NIT supersedes all of the sections of Tender document.**
- ii. Offer from following types of bidder will not be accepted.
 - a. Who are in the Holiday list of IOCL or its Administrative Ministry, MoPNG.
 - b. Who are under liquidation, court receivership or similar proceedings.
 - c. Who are undergoing insolvency resolution process or liquidation or bankruptcy proceeding under Insolvency and Bankruptcy Code, 2016 (Code) or any other applicable law (in case where Code is not applicable).
 - d. Whose insolvency resolution process or liquidation or bankruptcy proceeding is initiated under the Code or any other applicable law (in case where Code is not applicable) at any stage of evaluation of the bid. In case where the bid of the L-1 bidder is rejected on the aforesaid grounds

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during the period between Price-Bid-Opening and Award-of-Contract, then the bid of the next higher eligible bidder will be considered for further processing.

- e. Consultant appointed for the project / work shall not be allowed to participate in the tender either directly or indirectly for the same project for which they are working as consultant.
 - f. Foreign bidders are participating in Domestic /National tender.
 - g. Offer from Joint Bidders / Consortium, unless specifically permitted in the tender for such bidding.
- iii. In case, original bid closing date is upto 06 (six) months from current financial year, and, in case audited financial results of the immediate three preceding financial years are not available, the bidder has an option to submit the audited financial results of the three years immediately prior to preceding financial year.
- iv. The subject work is indivisible and shall be awarded to single successful bidder unless stated otherwise elsewhere in the tender document.
- v. Experience of only the bidding entity shall be considered, unless specifically permitted in the tender document to use the credentials of its parent or any group company to meet the Experience Criteria. A work executed by a bidder for its own plant/projects shall not be considered as experience for the purpose of meeting requirement of experience criteria of the tender. However, jobs executed for Subsidiary / Fellow Subsidiary / Holding company will be considered as experience for the purpose of meeting experience criteria subject to submission of tax paid invoice(s) duly certified by Statutory auditor of the bidder towards payments of statutory tax in support of the job executed for Subsidiary / Fellow Subsidiary /Holding company. Such bidders shall submit these documents in addition to the documents specified in the PQ Documents to meet Experience Criteria.

Consultant appointed for the project / work shall not be allowed to participate in the tender either directly or indirectly. An indirect participation shall include participation through an affiliate or as a sub-contractor, consultant or supplier. The expression 'affiliate' for the purpose of this clause will include any person, or company or association (howsoever designated) who/which is a member of the consultant (if the consultant is a joint venture or consortium or who or which directly or indirectly holds 10% (ten percent) or more of the capital or voting capital of consultant (if the consultant or any of its members is a company or a body corporate) or who or which is a consultant or sub-contractor of the consultant with regard to the project.

- vi. For fulfilling the experience criteria against work order(s) following documents may be considered as valid proof for meeting the criteria:
- a) Purchase/ Work Order copy with Schedule of Rates/ Scope of Works and
 - b) Completion certificate by end client with executed value, date of completion of the job and reference work order number.

Detail work order qualifying for similar in nature as described including covering letter ,schedule of rates and satisfactory completion certificate containing executed value & date of completion of similar nature of work as defined above shall be required.

- In case executed value is not mentioned in the completion certificate, the copy of the certified bill shall also be acceptable for determining value if submitted along with completion certificate. In case executed value is not mentioned in the completion certificate issued by the client, work order value with amendments, if any, shall be considered for the purpose of evaluation.
- In case, the executed value of job is more than work order value and bidder claims for meeting the PQC requirement on the basis of executed value then it is the responsibility of the bidder to submit the documentary evidence of final executed value (such as copy of final bill, executed value mentioned in completion certificate etc.) along with his bid.

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vii) In case of Sub-contract works, Whenever a contractor had worked as a sub-contractor to main contractor, their experience shall also be considered. Apart from copy of purchase/work order with schedule of rates/scope of work from the main contractor, the bidder who has worked as a sub contractor has to submit certificate of completion of work from the end user / owner / main contractor / consultant of the owner acting as EIC.

With regard to sub-contracted work order, the bidder is also required to submit a certificate from the end user / owner / consultant of the owner acting as EIC stating that the main contractor has intimated them about the engagement of sub-contracting OR have been allowed/ permitted as a subcontractor.

viii) In case any bidder submits work order and completion certificate of any executed contract where the bidder had worked as a leader / member of Joint Venture / Consortium / Joint Bidder, the work value shall be worked out as per the percentage share of the bidder in the JV / Consortium / Joint bidding agreement. Further in case the bidder had executed only a certain portion of the composite job through such agreement, his experience shall be counted for that particular portion of the job executed by him only, as specified in the JV/ consortium/joint bidder agreement. For such cases, in addition to work order and completion certificate(s), bidder will also submit copy of JV / consortium / joint bidder agreement and work order & completion certificate(s) has to be issued in the name of such JV / consortium / Joint bidder OR in the name of the Leader with brief details of JV / consortium / joint bidder specified in the work order.

- ix. The offers with incomplete /irrelevant documents or anomalies are liable to be rejected without any communication. Hence, bidders are advised to take utmost care while uploading their prequalification documents.
- x. In case the work orders submitted by the bidder is in multiple currency/ non-INR, the same shall be converted to equivalent INR considering the conversion rate as on the date of issue of the reference order(s) based on SBI TT selling rate or RBI/ Other scheduled bank/ Customs Notified exchange rate.
- xi. Relevant supporting documents towards other requirements specified are also to be uploaded along with Techno-commercial bid failing which bid is liable for rejection.
- xii. The completion certificate, submitted by the bidder shall separately indicate the Service Tax/GST amount included in the value of completed job OR a separate certificate from the respective client, mentioning the service tax/GST amount, if any, included in the value of completed job under consideration should be submitted by the bidder.
- xiii. The amount considered for meeting the experience criteria of PQC shall be **inclusive of Service Tax/GST**. In case proof /certificate submitted by the bidder does not have clarity regarding taxes i.e. the value of work specified in order /certificate is whether inclusion or exclusion of Service tax/GST, the amount appearing in the certificate/order shall be considered **Inclusive** of tax and shall be evaluated accordingly.
- xiv. IOCL reserves the right to reject any or all of the tenders or any parts of the tender so received and may cancel the tender in part or full, extend the due date of Tender submission etc. without assigning any reason.
- xv. Bidders are to quote their most competitive rates. Negotiations will not be conducted with the bidders as a matter of routine. However, Owner reserves the right to conduct negotiations. Ordinarily the lowest responsive bids shall be preferred. However, the OWNER reserves the right not to accept the lowest bid, if in its opinion this would not be in the interests of the works/IOCL.

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- xvi. Legal dispute, if any, shall only be within the jurisdiction of Local Court unless mentioned otherwise.
- xvii. All communication will be made through e-Tendering web site (www.iocltenders.nic.in). However, IOCL reserve the right to take cognizance of the communication made outside e-Tendering Portal under exceptional circumstances.
- xviii. Bidder cannot make any claim against IOCL towards its expense incurred in connection with the preparation and delivery of their bids, site visit, participating in the discussion and other expenses incurred during bidding process.
- xix. “Un-priced Bid” should not contain any prices or indication thereof. Bidder should make sure that their priced bid (Part-II/BOQ) contain only prices. Rates mentioned elsewhere shall not be taken into cognizance. Offer shall be liable for rejection if any condition directly or implied, recorded in Priced Bid (Part-II/BOQ).
- xx. Submission of authentic documents is the sole responsibility of the bidder. However, IOCL reserves the right to verify the PQC documents submitted by the bidder(s). For the purpose of verification, bidders shall submit complete client details with names, address, phone numbers and e-mail id with the understanding that IOCL may contact the bidder’s client to verify the PQC documents. Wherever required, bidders may have to submit notarized / verified copy of PQC documents. Non submission of these documents, if asked for, will lead to rejection of offer. Should IOCL decide to place order pending verification of PQC documents, payment shall be made only after completion of order. If at any stage, the PQC documents are found to be forged / false / fake, suitable penal action shall be taken, which may include offer rejection, EMD forfeiture, termination of order (wherever applicable) and holiday listing of the bidder / vendor.
- xxi. Offers not meeting statutory requirement are liable for rejection.
- xxii. Bidders are advised to visit Announcement section/ Information for DSC/ Bidders Manual Kit/ FAQ of e-Tender Portal before bidding.
- xxiii. Notwithstanding any other condition / provision in the tender documents, bidders are required to submit complete documents pertaining to Pre- Qualification Criteria (PQC) along-with their offer. IOCL reserves the right to complete the evaluation, with or without seeking any additional supporting documents / clarifications.
- xxiv. Refer ITB of the tender document /Special Instruction to Bidder (SITB) of e-tender web site for more details.
- xxv. Any Addendum/Corrigendum/Sale date extension in respect of above Tender shall be issued on our website: <https://iocltenders.nic.in> only and no separate notification shall be issued in the press. Bidders are therefore requested to regularly visit our website to keep themselves updated. Failure of Bidder to submit tender without taking cognizance of Corrigendum / Amendment (if any) issued by IOCL shall make bid liable for rejection.
- xxvi. IOCL does not take any responsibility for the correctness of tender documents obtained from any other source. Bidders are advised to visit above mentioned website before submitting their offer for official version of the tender document including any corrigendum / amendment if any, which shall be binding to the bidder.

xxvii. EMD

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xxviii. EMD for Indian Bidders:

- i. **EMD amount up to Rs. 1 Lakh:** EMD to be submitted through online payment at IOCL e-tender portal along with the offer. EMD payment through Demand Draft, Bankers Cheque and Swift Transfer shall not be accepted.
- ii. **EMD amount more than Rs. 1 Lakh:** EMD can be submitted through online payment at IOCL e-tender portal along with the offer or through Bank Guarantee (BG). Validity of BG in lieu of EMD shall be at least 3 months beyond bid validity. Bank Guarantee must be strictly as per IOCL format. Scanned Copy of EMD instrument i.e. Bank Guarantee has to be uploaded in the un-priced bid and the bidder should also ensure that the original BG in physical form duly enclosed in a sealed envelope super-scribed with “Offline EMD”, Bidder’s Name, Tender No., bid submission end date & time, is received at the office of tender issuing authority as per following schedule:
 - 1) **Single Bid Tenders:** Before due date and time of opening of bids.
 - 2) **Two Bid Tenders:** Within 7 working days from the date of opening of technical bids.

Note:

- For the purpose of receipt of BG, the time recorded in the receipt / dispatch section against receipt shall be considered as receipt time.
- Only those physical BG instruments found matching with the copy submitted in the e-portal shall be considered as valid.
- IOCL shall not be responsible for postal/courier delay, non-receipt or loss in transit.
- In case bidder does not submit EMD as mentioned above, then the bid shall be liable for rejection.

xxix. EMD for Foreign Bidders:

- i. **EMD amount upto Rs. 1 Lakh:** EMD to be submitted through online payment at IOCL e-tender portal along with the offer. EMD payment through Demand Draft / Bankers Cheque / Swift Transfer shall also be accepted.
- ii. **EMD amount more than Rs. 1 Lakh:** EMD can be submitted through online payment at IOCL e-tender portal along with the offer / Demand Draft / Swift Transfer or Bank Guarantee (BG). Validity of BG in lieu of EMD shall be at least 3 months beyond bid validity. Bank Guarantee must be strictly as per IOCL format.
In case of submission of physical EMD instrument i.e. Demand Draft / Bankers Cheque / Bank Guarantee, scanned Copy of EMD instrument has to be uploaded in the un-priced bid and the bidder should also ensure that the Original EMD instrument in physical form duly enclosed in a sealed envelope super-scribed with “Offline EMD”, Bidder’s Name, Tender No., bid submission end date & time, is received at the office of tender issuing authority as per following schedule:

- 1) **Single bid tenders:** Before due date and time of opening of bids.
- 2) **Two bid tenders:** Within 7 working days from the date of opening of technical bids.

Note:

- For the purpose of receipt of physical EMD instrument, the time recorded in the receipt / dispatch section against receipt shall be considered as receipt time.
- Only those physical EMD instrument found matching with the copy submitted in the e- portal shall be considered as valid.
- IOCL shall not be responsible for postal/courier delay, non-receipt or loss in transit.
- In case bidder does not submit EMD as mentioned above, then the bid shall be liable for rejection.

xxx. EMD Exemption

EMD is not required in the following cases:

- (i) Single tender (Proprietary / Non-Proprietary).
- (ii) Government organization & Public Sector Undertaking of the Central / State Government

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- (iii) JV / subsidiary companies of IOCL
- (iv) Startups
- (v) **EMD exemption to MSE bidders having valid Udyam Registration certificate is allowed only for ‘Service contract’ BUT ‘not for Works contract’.**
- (vi) **Forfeiture of EMD:**

Earnest Money if applicable shall be forfeited in the following circumstances:

- (i) In case the bidder tampers the tender document, alters / modifies / withdraws the bid suo-moto after opening the bids (Technical bids in case of two bid system) within the validity period.
- (ii) In case the bidder submits false/fraudulent/fake/ forged documents.
- (iii) In case the tender is accepted, and the contractor fails to deposit the ISD/SD or to execute the contract.
- (iv) In case of failure of the bidder to get the documents verified as per the specified time schedule in the tender. (Where verification is done through the Original Document Verification process)

xxxi. Purchase Preference:

It is works contract and there is no purchase preference applicable to MSE registered bidder.

- xxxii. In case, a foreign bidder submits any of the Pre-Qualification supporting documents in any language other than English, then it will be the responsibility of the bidder to also provide the English translation copy of same duly certified, stamped and signed by their Local Chamber of Commerce/ Notary. Translation by Indian Embassy / High Commission or authorized / approved translation agencies (by Indian Embassy / High Commission) or any other independent authority shall also be acceptable apart from the Local Chamber of Commerce of country of origin. This clause shall also apply in case an Indian bidder submits PQC document (full / part) in foreign language other than English.
- xxxiii. During the contract / engagement the organization, its employees, agents, other contractors, sub-contractors and their employees, etc., may be exposed to certain unpublished price sensitive information (UPSI), that is not generally available and which upon becoming generally available is likely to materially affect the price of the securities issued by Indian Oil. Such UPSI shall be held by the organization, its employees, agents, other contractors, sub-contractors and their employees etc., in strictest confidence and shall not be disclosed to any other party except on need to know basis and with the prior consent of Indian Oil. It is hereby further cautioned that, the organization, its employees, agents, other contractors, sub-contractors, their employees and immediate relatives thereof, should not trade in the securities of Indian Oil while in possession of such UPSI or communicate such UPSI to any person except in furtherance of legitimate purposes, performance of duty or discharge of legal obligations. Any trades in securities of Indian Oil, while in possession of any UPSI would be presumed to have been motivated by the knowledge and awareness of the UPSI and liable for penal action under this contract / engagement as well as under SEBI (Prohibition and Insider Trading) Regulations, 2015. It is therefore advised to familiarize with the “Code for Prevention of Insider Trading in the Securities of Indian Oil”, copy of which is hosted on the website www.iocl.com. Accordingly, it must be ensured that any UPSI, whenever received from the Indian Oil,
 - (a) shall be used solely for the purpose for which it is being disclosed;
 - (b) shall be preserved and the secrecy of such information shall be maintained;
 - (c) shall not be disclosed to any third party;
 - (d) shall be kept securely and properly protected against theft, damage, loss and unauthorized access (including access by electronic means) by deploying means similar to those being used to secure their own confidential information;

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- (e) to notify Indian Oil immediately upon becoming aware that any of the confidential information has been disclosed to or obtained by a third party.

The organization shall undertake that its employees & their immediate relatives, agents, sub-contractors and any other person associated with said contract / engagement does not violate any of the provision of the SEBI (Prohibition of Insider Trading) Regulation, 2015. Any violation shall be considered as breach of terms of contract / engagement and Indian Oil shall take necessary action for such breach in addition to reporting to SEBI for taking necessary action under SEBI (Prohibition of Insider Trading) Regulations, 2015.

xxxiv. Other Important Notes:

- (a) For experience purpose (1/2/3 Work Order) the Work Order with completion date within last **07 (Seven) years** (irrespective of work order issue date and date of commencement) shall be acceptable.
- (b) Since PQC for ARC jobs (of one year or more duration) is set on annualised estimate basis, evaluation for experience criteria shall also be annualised.
- (c) ARC jobs successfully completed for original schedule by the bidder for the originally awarded/ extended period of such ARC shall be considered as completed works even though such ARC is under execution on account of extension.

For ARC jobs, the non-ARC experience submitted by the bidder is also to be annualized for jobs which are more than one year duration. ARC jobs successfully completed by the bidder for the originally awarded /extended period of such ARC shall be considered as completed works even though such ARC is under execution on account of extension.

- (d) In case of Rate Contracts, which are running under extension after original contractual completion period, suitable document (certified by "WO issuing company" / Engineer-In-Charge) indicating executed value up to the original/extended completion period along with extension letter will be treated as proof of successful completion of work.
- (e) **Turnover for the purpose of meeting ATO requirement as specified in NIT shall be as per audited financial statements.**

For Indian bidder other than Companies: Audited Financial statements means below statements duly certified by Practising Chartered Accountant

- Audited accounts under Income Tax Act 1961.
- However, if the Bidder is not required to get its accounts audited under the income Tax Act, 1961, a certificate from "Practicing Chartered Accountant towards the turnover of the Bidder and same is correlated with Annual GST turnover" along with copy of its Income Tax Return or Acknowledgement copy shall be furnished along with UDIN no.

For Indian Companies: As defined under section 2(40) of Companies Act -2013.

For foreign bidders: Similar documents under respective law of land.

The reports issued by any Auditor / Chartered Accountant shall mandatorily bear UDIN (Unique Document Identification Number) for such reports of FY 2019-20 onwards.

- (f) For the bidders whose financial year is calendar year, the audited financial results shall be considered on calendar year basis in lieu of financial year.
- (g) If a Foreign Bidder's Audited Financial Report is in currency other than INR, the respective/ desired figures for calculation of Annual Turnover shall be converted into equivalent INR considering the

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	Name of Work	Tender No.
	“Development and Implementation of Rigorous Optimiser for Heater Downstream Section using Hybrid Models (First Principle + Artificial Intelligence (AI) / Machine Learning (ML)) in Naphtha Cracker Unit of Panipat Naphtha Cracker”	RPNC261001

conversion factor indicated in Bidder's Audited Financial Report. In case the same is not indicated, the rate of conversion as on last date of respective financial years, for which the bidder has submitted the financial results, shall be considered. The conversion rates shall be based on SBI TT selling rate or RBI/ Other scheduled bank/ Customs Notified exchange rate.

- (h) Bidders have to upload the valid duly notarized, authorization document on stamp paper, in favour of signatory to tender (like Proprietorship Affidavit, Partnership deed, Power of Attorney, Copy of memorandum & Article of association etc as the case applicable).
- (i) Foreign bidders are not permitted to bid against domestic tender. Foreign bidders are permitted to bid only against Global Tender.
- (j) If bidder has submitted a composite work order for evaluation and the AMC/CAMC /PWAMC/O&M is going on, after supply and installation part is completed by the Contractor as per completion certificate, the same is to be considered as completed work and the amount towards supply and installation shall be considered for qualifying the bidder in PQC towards experience criteria. Such work orders in which both supply & installation and AMC/CAMC/PWAMC/O&M is completed, the same shall be treated 'At Par' with the other work orders and bidder is required to submit the copy of work order and completion certificate for the complete work including AMC/CAMC/PWAMC/O&M part.
- (k) In case bids have to be revalidated on any account before PBO beyond the originally sought validity, the same may be allowed without any change in prices.
- (l) In cases where tenders are being invited on risk and cost basis, contractor on whose risk and cost such tenders are invited shall be barred from participation and bids of such party if received shall be rejected.

Deputy General Manager (Contracts)
Indian Oil Corporation Ltd.,
(Panipat Naphtha Cracker)